

44SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS _____

MOHAMED ABDELHADI,

Plaintiff,

Against

THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JOSEPH PANEK, SHIELD #17140, OF THE 60TH
PRECINCT and JOHN AND JANE DOE POLICE
OFFICIERS (1-10) OF THE 60TH PRECINET,

Defendants

Index No.

Purchased:

SUMMONS

Plaintiff resides at 142 Ada Drive
Staten Island, NY 10314

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED, to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this SUMMONS AND COMPLAINT or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York, and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue is the place of incident.

DATED: New York, New York
January 9, 2023

LAW OFFICE OF
ANDREW C. LAUFER, PLLC

By:  Andrew C. Laufer, Esq.
Attorney for Plaintiff

MOHAMED ABDELHADI
264 W. 40th Street, Suite 604
New York, NY 10018
212-422-1020

Defendant's Address

THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

NEW YORK CITY POLICE DEPT.
C/O THE CITY OF NEW YORK
100 CHURCH STREET
NEW YORK, NY 10007

POLICE OFFICER JOSEPH PANEK SHIELD 17140
Police Officer of the 60th Precinct
2951 West 8th Street
Brooklyn, NUY 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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THE CITY OF NEW YORK, NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER
JOSEPH PANEK, SHIELD #17140, OF THE 60TH
PRECINCT and JOHN AND JANE DOE POLICE
OFFICERS (1-10) OF THE 60TH PRECINET,

Defendants

Index No.

Purchased:

VERIFIED COMPLAINT

Plaintiff, by and through his attorneys, Law Office of Andrew C. Laufer, PLLC complaining of the defendants herein, upon information and belief, respectfully shows to this court, and alleges as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Richmond, City and State of New York.
2. The claim arose on or about August 6, 2022 at approximately 4:15 P.M. at 3000 Ocean Parkway. At the aforesaid time and place, after leaving a store and getting back into his vehicle, NEW YORK CITY POLICE OFFICERS of the 60th Precinct did chase him down, pulling him over and then proceeded to beat him up, kicking him in the head and body and claimed he was resisting arrest all without probable cause or reasonable suspicion to believe that claimant committed or was about to commit a crime or criminal violation. The officers then searched plaintiff without plaintiff's consent and without reasonable suspicion, probable cause or other justification.
3. That an Examination of the plaintiff, then claimant, was held by the defendants on December 5, 2022 pursuant to Municipal law 50H within ninety (90) days after filing of the aforementioned Notice of Claim.
4. More than thirty (30) days have elapsed since the service of said Notice of Claim upon defendant, THE CITY OF NEW YORK and defendant, NEW YORK CITY POLICE DEPARTMENT, has failed, neglected and/or refused to pay, settle, compromise or adjust the claim of the plaintiff herein.

5. This action has been commenced within one year and ninety (90) days after the within cause of action arose including, but not limited to, any equitable tolling of the statutory time period.

6. That at all times hereinafter mentioned defendant, THE CITY OF NEW YORK, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

7. That at all times hereinafter mentioned, NEW YORK CITY POLICE DEPARTMENT, was and is a municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

8. That at all times hereinafter mentioned, POLICE OFFICER JOSEPH PANEK SHIELD NO. 17140, and JOHN AND JANE DOE POLICE OFFICIERS (1-10) OF THE 60TH PRECINET, were and still are employed with defendants, THE CITY OF NEW YORK and NEW YOK NEW YORK CITY POLICE DEPARTMENT.

9. That at all times hereinafter mentioned, POLICE OFFICER JOSEPH PANEK SHIELD NO. 17140 and JOHN AND JANE DOE POLICE OFFICIERS (1-10) OF THE 60TH PRECINET were acting within the scope and course of their employment with the City of New York and New York City Police Department, and under the color of State Law.

10. That all the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law and Rules 1602 with respect to joint and several liability.

STATEMENT OF FACTS COMMON TO ALL CAUSES OF ACTION

11. On or about August 6, 2022 at approximately 4:14 pm, plaintiff, MOHAMED ABDELHADI, was lawfully at or around 3000 Ocean Parkway, Brooklyn NY.

12. At said time and place and without probable cause, plaintiff after leaving a store and getting back into his vehicle, a NEW YORK CITY POLICE OFFICER of the 60th Precinct did chase him down, pulling him over and then proceeded to beat him up, kicking him in the head and body and claimed he was resisting arrest, all without probable cause or reasonable suspicion to believe that plaintiff was resisting arrest.

13. The individual defendants, POLICE OFFICER JOSEPH PANER, SHIELD NO 17140, of the 60th Precinct, under color of State law, subjected plaintiff to the foregoing acts and omissions without due process of the law, thereby depriving plaintiff of his rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution, including without limitation, deprivation of the following constitutional rights: (a) freedom from unreasonable searches and seizure of his person, including excessive use of force; (b) the enjoyment of equal protection, privileged and immunities under the law.

14. As a result of the forementioned actions, defendants deprived plaintiff of his right to liberty without due process of law secured by the Constitution and Laws of the United States of America and the FOURTH AND FOURTEENTH AMENDMENTS.

15. The aforementioned acts of defendants were intentional, willful and malicious and performed with a reckless disregard for said deliberate indifference to plaintiff's rights.

16. That by reason of the assault, battery, and excessive use of force against the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer much pain in both mind and body, and to sustain injuries and damages.

17. The aforementioned described constitutional violations are all actionable under ad pursuant to 42 U.S.C. Section 1983, 1988 New York City and New York State Law.

**FIRST CAUSE OF ACTION FOR VIOLATIONS OF PLAINTIFF'S FOURTH AND
FOURTEENTH AMENDMENTS TO THE UNITED STATES CONSTITUTION, NEW YORK
CITY AND NEW YORK STATE LAW PREDICATED UPON ASSAULT, BATTERY, AND USE
OF EXCESSIVE FORCE UPON PLAINTIFF**

18. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

19. That on or about August 6, 2022 defendants, jointly and severally in their capacity as police officers, wrongfully stopped plaintiff, handcuffed and seized the plaintiff about his person, causing him

physical pain and mental suffering. At no time did defendants have legal cause to stop, handcuff, seize or touch plaintiff, nor did plaintiff consent to the illegal touching nor was it privileged by law.

20. As a result of the aforementioned actions, defendants deprived plaintiff of the right to be free from use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

21. As a result of the forementioned actions, defendants deprived plaintiff of his right against the use of excessive force against his persons secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

22. The aforementioned acts of defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to plaintiff's rights,

23. That by reason of the assault, battery and use of excessive force upon the plaintiff, plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and was caused to suffer such pain in both mind and body, and to be free from the use of excessive force secured by the Constitution and Laws of the United States of America.

24. The plaintiff was assaulted, battered, victimized and suffered great injury without the defendants' possession probable cause to do so.

25. The above actions of the defendants resulted in the plaintiff being deprived of the following rights under the United States Constitution..

- a. Freedom from assault to his person.
- b. Freedom from battery to his person;
- c. Freedom from the use of excessive force during the arrest process.

26. The defendants subjected plaintiff to such deprivations, either in a malicious or reckless disregard to the plaintiff's rights

27. Defendant CITY, has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when its police officers are not in possession of a court authorized arrest warrant and where an individual especially as here, had not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest.

28. The direct and proximate results of the defendants, acts are that plaintiff suffered severe and permanent injuries of a physical and psychological nature. He was force to endure pain and suffering to his detriment.

AS AND FOR A SECOND CAUSE OF ACTION - MONELL VIOLATIONS

29. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

30. All of the acts and omissions by the individual defendants, described above were carried out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge consent and cooperation and under the supervisory authority of defendants CITY and the NEW YORK CITY POLICE DEPARTMENT.

31. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual defendants' wrongful acts and/or failed to prevent or stop those acts and/or alleged acts to continued.

32. Defendants arrested and detained plaintiff in the absence of any evidence of criminal wrongdoing notwithstanding their knowledge that said arrest and detention would jeopardize plaintiff's liberty, well-being, safety and constitutional rights.

33. At all times mentioned herein said police officers were acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of

New York.

34. On or about August 6, 2022, defendants did seize, search and beat plaintiff up, kick plaintiff in the head several times causing physical and emotional injuries and damages. They did physically seize the person of the plaintiff during the arrest process in an unlawful and excessive manner inflicting cruel and unusual punishment.

35. The defendants subjected plaintiff to such deprivations, either in a malicious or reckless disregard of the plaintiff's rights.

36. Defendant CITY has grossly and negligently failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when the police officers are not in possession of a court authorized arrest warrant and where an individual especially as here, has not committed a crime and has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest and the arrest should be based upon probable cause.

37. The direct proximate results of the defendants' acts are that plaintiff suffered severe and permanent injuries of a psychological and physical nature. He was forced to endure pain and suffering to his detriment.

THIRD CAUSE OF ACTION FOR NEGLIGENT HIRING, TRAINING, RETENTION AND SUPERVISION

38. Plaintiff repeats and realleges each and every allegation contained above as though set forth at length herein.

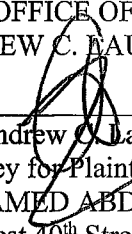
39. That the aforesaid action and resulting injuries to plaintiff were due to the negligence of the CITY in the hiring, retention and training of its employees, including POLICE OFFICER JOSEPH PANEK, SHIELD 17140; on or ground thereof and in all ways being grossly negligent and engaging in wanton and reckless conduct.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for plaintiff's pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter and plaintiff further demands punitive damages on all

causes of action, in an amount to be determined by the trier of fact, together with attorney's fees and together with costs and disbursements.

DATED: New York, New York
January 9, 2023

LAW OFFICE OF
ANDREW C. LAUFER, PLLC

By:  Andrew C. Laufer, Esq.
Attorney for Plaintiff
MOHAMED ABDELHADI
264 West 40th Street, Suite 604
New York, NY 10018
212-422-1020

ATTORNEY'S VERIFICATION

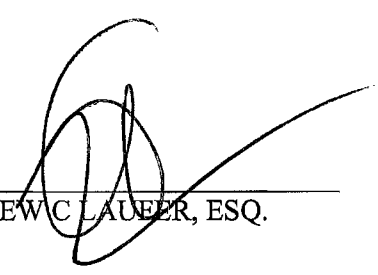
ANDREW C. LAUFER, an attorney duly admitted to practice law in the Courts of New York, affirms the following to be true:

1. That I am a principal of the Law Office of Andrew C. Laufer, PLLC, attorney for the plaintiff in the within action. That I have read the foregoing complaint and know the contents thereof, and that same is true to my knowledge, except as to the matters herein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

2. That the source of my information and knowledge are records and investigation reports maintained within the file.

3. That the reason this verification is made by your affirmant, and not by the plaintiff is that plaintiff resides outside the County in which your affirmant maintains his office.

DATED: New York, New York
January 9, 2023



ANDREW C. LAUFER, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Defendants,

SUMMONS AND VERIFIED COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
264 W. 40th Street, Suite 604
New York, NY 10018

Tel: (212) 422 1020

Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ **NOTICE OF ENTRY**

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ **NOTICE OF SETTLEMENT**

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer